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## Revenue Recovery Act, 1890

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**DISCLAIMER:** *This booklet has been prepared strictly from an examination point of view. While every effort has been made to ensure accuracy and the inclusion of recent changes, amendments, and updates to the relevant Acts, Rules, and Regulations, this document is intended as a study aid only. Readers and students are strongly recommended to refer to official government sources or gazettes for the most reliable and authoritative information.*

## THE REVENUE RECOVERY ACT, 1890

(Act No. 1 of 1890)

### Section 1. Short Title and extent

1. The act may be called the Revenue Recovery Act, 1890.
2. It effects from **14 February 1890**.
3. It extends to the whole of India including J & K and Ladakh (w.e.f. **31.10.2019**).

### Section 2. Definitions

1. **District:** includes a presidency-town.
2. **Collector:** means the chief officer in charge of the land-revenue administration of a district.
3. **Defaulter:** means a person from whom an arrear of land-revenue, or a sum recoverable as an arrear of land-revenue, is due, and includes a person who is responsible as surety for the payment of any such arrear or sum.

### Section 3. Recovery of public demands by enforcement of processes in other districts than those in which they become payable

1. Where an arrear of land-revenue, or a sum recoverable as an arrear of land-revenue, is payable to a Collector by a defaulter being or having property in a district other than that in which the arrear accrued, the Collector may send to the Collector of that other district a certificate in the form, stating:
  - The name of the defaulter and such other particulars as may be necessary for his identification, and
  - The amount payable by him and the account on which it is due.

2. The Collector of the other district shall, on receiving the certificate, proceed to recover the amount stated therein as if it were an arrear of land-revenue which had accrued in his own district.

#### **Section 4. Remedy available to person denying liability to pay amount recovered under last foregoing section**

1. When proceedings are taken against a person under the last foregoing section for the recovery of an amount stated in a certificate, that person may, if he denies his liability to pay the amount or any part thereof and pays the same under protest made in writing at the time of payment and signed by him or his agent, institute a suit for the repayment of the amount or the part thereof so paid.
2. A suit under sub-section (1) must be instituted in a Civil Court having jurisdiction in the local area in which the office of the Collector who made the certificate is situate, and the suit shall be determined in accordance with the law in force at the place where the arrear accrued or the liability for the payment of the sum arose.
3. In the suit the plaintiff may, notwithstanding anything in the last foregoing section, but subject to the law in force at the place aforesaid, give evidence with respect to any matter stated in the certificate.
4. This section shall apply if under this Act as in force as part of the law of Pakistan or Burma, or under any other similar Act forming part of the law of Pakistan or Burma, proceedings are taken against a person in Pakistan or Burma, as the case may be, for the recovery of an amount stated in a certificate made by a Collector.

#### **Section 5. Recovery by Collectors of sums recoverable as arrears of revenue by other public officers or by local authorities**

Where any sum is recoverable as an arrear of land-Revenue of any public officer other than a Collector or by local authority, the Collector of the district in which the office of that officer or authority is situate shall, on the request of the officer or authority, proceed to recover the sum as if it were an arrear of land-revenue which had accrued in his own district, and may send a certificate of the amount to be recovered to the Collector of

another district under the foregoing provisions of this Act, as if the sum were payable to himself.

### Section 6. Property liable to sale under this Act

1. When the Collector of a district receives a certificate under this Act, he may issue a proclamation prohibiting the transfer or charging of any immovable property belonging to the defaulter in the district.
2. The Collector may at any time, by order in writing, withdraw the proclamation, and it shall be deemed to be withdrawn when either the amount stated in the certificate has been recovered or the property has been sold for the recovery of that amount.
3. Any private alienation of the property or of any interest of the defaulter therein, whether by sale, gift, mortgage or otherwise, made after the issue of the proclamation and before the withdrawal thereof shall be void as against the Government and any person who may purchase the property at a sale held for the recovery of the amount stated in the certificate.
4. A proclamation under this section shall be made by beat of drum or other customary method and by the posting of a copy thereof on a conspicuous place in or near the property to which it relates.
5. When proceedings are taken against any immovable property under this Act for the recovery of an amount stated in a certificate, the interest of the defaulter alone therein shall be so proceeded against, and no incumbrances created, grants made or contracts entered into by him in good faith shall be rendered invalid by reason only of proceedings being taken against those interests.

### Section 7. Saving of local laws relating to revenue

### Section 8. Recovery in India of certain public demands arising beyond India

When this Act has been applied to any local area which is under the administration of the Central Government but which is not part of India, an arrear of land-revenue accruing in



that local area, or a sum recoverable as an arrear of land-revenue and payable to a Collector or other public officer or to a local authority in that local area, may be recovered under this Act in India.

### **Section 9. Recovery in India of land revenues, etc., accruing in Burma**

1. The Central Government may direct that an arrear of land-revenue accruing in Burma or a sum recoverable in Burma as an arrear of land-revenue and payable to a Collector or other public officer or to a local authority in Burma may be recovered under this Act in India.
2. For recovering by virtue of this section any arrears of tax, penalty due under the enactments relating to income-tax or super-tax in force in Burma, the Collector shall have such additional powers as he has in the case of Indian income-tax.

### **Section 10. Duty of Collectors to remit moneys collected in certain cases**

Where a Collector receives a certificate under this Act from, a Collector of another State or a Collector in Pakistan or Burma, he shall remit any sum recovered by him by virtue of that certificate to that Collector, after deducting his expenses in connection with the matter.